

26STLC00857 26STLC00857

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-09-22

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Case Number: 26STLC00857 Hearing Date: September 22, 2026 Dept: 25

HEARING DATE: Tues., September 22, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Karapet

Dermendjian Inc. v. Estrada, et al.

COMP. FILED: 02-09-26

CASE NUMBER: 26STLC00857

NOTICE: OK

PROCEEDINGS: MOTION

TO VACATE ENTRY OF DEFAULT AND DEFAULT JUDGMENT AS VOID

MOVING PARTY: Defendant Salvador Morales

RESP. PARTY: None

MOTION TO VACATE

DEFAULT AND DEFAULT JUDGMENT

(Code Civ. Proc., § 473(d))

TENTATIVE RULING:

The Court GRANTS

Salvador Morales's motion.

The May 6,
2026 default and June 15, 2026 default judgment are hereby SET ASIDE AND
VACATED.

The
purported service on Morales is quashed.
The writ of execution naming Morales as an additional judgment debtor is
recalled and quashed as to him only.

Morales is to give notice.

SERVICE:

☒ Proof
of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct
Address (CCP §§ 1013, 1013a) OK

☒ 16/21
Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None
filed as of September 17, 2026 ☐ Late ☒
None

REPLY: None
filed as of September 17, 2026 ☐ Late ☒
None

ANALYSIS:

Karapet Dermendjian Inc. sued Carmen Isabel Estrada for
breach of contract and fraud. Karapet
then amended the complaint to name Salvador Morales as Doe 2.[1] Karapet obtained a default judgment against Estrada
and Morales on June 15, 2026. Morales
then filed a motion and amended motion to vacate the default and default
judgment, but failed to serve them on Karapet.
The Court continued this hearing to allow for proper service and proof
of that service to be filed, which Morales did.

Morales moves to have the judgment and underlying default vacated under Code of Civil Procedure section 473, subdivision (d), arguing the default and default judgment are void for invalid service of process.

The default

and default judgment are void for noncompliance with Code of Civil Procedure section 474, which applies to fictitiously named defendants. That section bars entry of a default or default judgment against a fictitiously named defendant “unless it appears that the copy of the summons or other process . .

. bore on the face thereof a notice stating in substance” that the

person is “served . . . as (or on behalf of) the person sued under the fictitious name of (designating it).” (Code

Civ. Proc., § 474.) The proof of service

must also “state the fictitious name under which such defendant was served and

the fact that notice of identity was given by endorsement upon the document

served.” (Ibid.) Compliance with both the summons and proof-of-service

requirements is mandatory before default or default judgment may be

entered. (Pelayo v. J. J. Lee

Management Co., Inc. (2009) 174 Cal.App.4th 484, 496–497 (Pelayo).)

Whether or

not it complied with the summons requirement, Karapet did not comply with the

proof-of-service requirement. Both the

original and amended proofs of service leave blank the “Notice to the Person

Served” entry for service “as the person sued under the fictitious name of

(specify),” and instead check “as an individual defendant.” Furthermore, neither states the fictitious

name under which Morales was served nor that the notice of identity was given

by endorsement. These recitals are

mandatory prerequisites that must appear in the proof of service; their

omission from the proof of service makes the default and default judgment void. (Pelayo, supra, 174 Cal.App.4th

at pp. 496–497.)

The Court

notes that service of the amendment to complaint on Morales does not cure the

defect. The amendment document is not

“process” within the meaning of Code of Civil Procedure section 474. (Carol Gilbert, Inc. v. Haller (2009)

179 Cal.App.4th 852, 859.)

Accordingly,

Morales is entitled to relief under Code of Civil Procedure section 473,

subdivision (d) for invalid service of process.

The Court therefore GRANTS Morales's motion. The May 6, 2026 default and June 15, 2026 default judgment are hereby SET ASIDE AND VACATED. The writ of execution naming Morales as an additional judgment debtor is therefore recalled and quashed as to him only. The Court ORDERS Karapet to SHOW CAUSE on November 4, 2026 at 9:30 a.m. in Department 25 of the Spring Street Courthouse, regarding the service of process on Morales.

Morales is to give notice.

[1]

The Court notes that Morales references himself as Doe 1. But the Court's records reflect he was named as Doe 2 and thus it refers to Morales as Doe 2.